

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
SHOSHANA GOVAN,

INDEX NO.

Plaintiff,

- against -

SUMMONS

**Plaintiff designates BRONX
County as the place of trial.**

**THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ARACE BADGE # 317,
POLICE OFFICER BARKER BADGE # 28200,
POLICE OFFICER ESTRELLA LOPEZ BADGE #25235,
POLICE OFFICER AHN BADGE #1234
RELIANT REALTY, PEDRO "DOE" (LAST NAME
PRESENTLY UNKNOWN- SUPERINTENDENT),
SHARON STANTON (PROPERTY MANAGER)
SHAMONE BROWN (EX-BOYFRIEND), AND
JOHN DOE POLICE OFFICERS AND OFFICIALS
(NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN)**

**The basis of venue is the
location of the incident and
Plaintiffs residence [CPLR
§503(a)]: 1663 Eastburn
Avenue, Apt# 5C, Bronx,
NY 10457**

Defendant(s),

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TO THE ABOVE-NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED and required to serve upon the Plaintiff's attorney
an answer to the complaint in this action within twenty (20) days after the service of this
summons, exclusive of the day of service, or within thirty (30) days after service is complete if
this summons is not personally delivered to you within the State of New York. In case of your
failure to answer, judgement will be taken against you by default for the relief demanded in the
complaint.

Dated: New York, NY
February 20, 2024

LAW OFFICES OF
ADAM M. THOMPSON, P.C.

Adam Thompson

Adam M. Thompson, Esq.
Attorney for Plaintiff
48 Wall Street, 11th floor
New York, NY 10005
(212) 267-2424

TO:

THE CITY OF NEW YORK

100 Church Street, 4th Floor
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT

100 Church Street, 4th Floor
New York, NY 10007

RELIANT REALTY

909 Third Avenue, 21st Floor
New York, NY 10022

SHAMONE BROWN

1663 Eastburn Avenue, Apt# 6D
Bronx, NY 10457

SHARON STANTON

909 Third Avenue, 21st Floor
New York, NY 10022

PEDRO "DOE"

1663 Eastburn Avenue, Superintendent Apt,
Bronx, NY 10457

POLICE OFFICER ARACE BADE # 317

(Address Presently unknown)

POLICE OFFICER BARKER BADGE # 28200

(Address Presently unknown)

POLICE OFFICER ESTRELLA LOPEZ BADGE #25235

(Address Presently unknown)

POLICE OFFICER AHN BADGE #1234

(Address Presently unknown)

JOHN DOE POLICE OFFICERS and OFFICIALS

(Address Presently unknown)

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
SHOSHANA GOVAN,

INDEX NO.

Plaintiff,

VERIFIED
COMPLAINT

- against -

Plaintiff demands
trial by Jury

**THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ARACE BADGE # 317,
POLICE OFFICER BARKER BADGE # 28200,
POLICE OFFICER ESTRELLA LOPEZ BADGE #25235,
POLICE OFFICER AHN BADGE #1234,
RELIANT REALTY, PEDRO "DOE" (LAST NAME
PRESENTLY UNKNOWN- SUPERINTENDENT),
SHARON STANTON (PROPERTY MANAGER)
SHAMONE BROWN (EX-BOYFRIEND), AND
JOHN DOE POLICE OFFICERS AND OFFICIALS
(NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN)**

Plaintiff designates **BRONX**
County as The Place of trial

Defendants,

-----X
Plaintiff SHOSHANA GOVAN by her attorney, ADAM M. THOMPSON, ESQ. complaining of the DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ARACE BADGE # 317, POLICE OFFICER BARKER BADGE # 28200, POLICE OFFICER ESTRELLA LOPEZ BADGE #25235, POLICE OFFICER AHN BADGE #1234, RELIANT REALTY, PEDRO "DOE" (LAST NAME PRESENTLY UNKNOWN) SUPERINTENDENT), SHARON STANTON (PROPERTY MANAGER), SHAMONE BROWN (EX-BOYFRIEND), AND JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) (hereinafter, "DEFENDANTS") herein alleges as follows:

PRELIMINARY STATEMENT

1. That, on or about the 8th day of December 2022 at approximately 9:30 A.M., while

PLAINTIFF SHOSHANA GOVAN was inside her apartment, asleep, DEFENDANT

PEDRO "DOE" improperly allowed DEFENDANTS THE NEW YORK CITY POLICE

DEPARTMENT POLICE OFFICER ARACE, POLICE OFFICER BARKER BADGE # 28200, POLICE OFFICER ESTRELLA LOPEZ BADGE #25235, POLICE OFFICER AHN BADGE #1234, and JOHN DOE POLICE OFFICERS AND OFFICIALS and SHAMONE BROWN entry into the building without any valid reason, without inquiry for warrant or probable cause. The DEFENDANTS were taken to Plaintiff's apartment and proceeded to drill holes through PLAINTIFF's front door lock and then kicked in the door to enter the apartment. DEFENDANT POLICE OFFICER ARACE, and the other named defendant police officers, including JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) accompanied DEFENDANT SHAMONE BROWN, Plaintiff's ex-boyfriend, and the super, Defendant Pedro Doe, into the apartment. PLAINTIFF, at the time of this incident, had an order of protection against SHAMONE BROWN. She also had previously filed three separate police reports against him for domestic violence (filed on Nov 4, 2022, Nov 8, 2022, Dec 2, 2022). Prior to this incident, the PLAINTIFF furnished RELIANT REALTY and SHARON STANTON with copies of the Order of Protection against SHAMONE BROWN and Police reports of domestic violence. The landlord, property manager and super were all informed of this and had both Actual and Constructive Notice. At the time of entry, PLAINTIFF was undressed and in bed. PLAINTIFF informed DEFENDANT POLICE OFFICER ARACE and the other named police officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) of her Order of Protection against SHAMONE BROWN. They ignored her. PLAINTIFF requested the DEFENDANTS to leave for her to get dressed, which they refused. PLAINTIFF requested to have a female arresting officer, which was also denied. PLAINTIFF refused to get dressed in front of the

DEFENDANTS. She was then touched about her person and placed in handcuffs on her bed without being dressed. DEFENDANTS kept PLAINTIFF improperly clothed and restrained by handcuffs until their POLICE SUPERINTENDENT/ Supervisor Ahn arrived and instructed DEFENDANTS to remove the handcuffs and allow PLAINTIFF to get dressed. DEFENDANTS, with full knowledge of PLAINTIFF's Order of Protection and three previous police reports against her ex-boyfriend DEFENDANT SHAMONE BROWN allowed, authorized, and assisted SHAMONE BROWN to improperly enter the premises, destroy her lock and front door, and remove property from the premises, presumed to belong to him. DEFENDANTS left the apartment in disarray. PLAINTIFF was improperly given a Criminal Court Desk appearance ticket for Unlawful Eviction. The police ignored all of the information provided by the Plaintiff including the Order of Protection. PLAINTIFF was directed to appear in court on December 27, 2022. PLAINTIFF appeared in court and the matter was dismissed and sealed by the District Attorney's office in her favor for lack of evidence.

2. DEFENDANTS, POLICE OFFICER ARACE BADGE NUMBER 317, and the other named police officers, and JOHN DOES POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN), forcefully broke and entered PLAINTIFF's home without her consent, permission or authority, without a valid warrant or probable cause to do so, causing PLAINTIFF extensive emotional distress, mental anguish, and pain and suffering. She also had personal property damage.
3. PLAINTIFF GOVAN, was harassed, humiliated, and improperly touched inappropriately by DEFENDANTS POLICE OFFICER ARACE BADGE NUMBER 317, and the other named defendant police officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES

AND BADGE NUMBERS PRESENTLY UNKNOWN) when they physically touched, seized, searched and detained PLAINTIFF GOVAN without her permission or consent, legal authority, or probable cause to do so.

4. DEFENDANTS, RELIANT REALTY and property manager SHARON STANTON knew of and had copies of the order of protection against SHAMONE BROWN and the police reports of domestic violence filed against him.
5. DEFENDANTS, RELIANT REALTY and property manager SHARON STANTON, informed, or should have informed, super DEFENDANT PEDRO “DOE” of the Order of Protection and prior police reports filed by Plaintiff against SHAMONE BROWN.
6. That DEFENDANT, PEDRO “DOE” knew or should have known of the Order of Protection against SHAMONE BROWN when he let SHAMONE BROWN into the building and escorted him and THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ARACE, and the other named police officers and JOHN DOE POLICE OFFICERS AND OFFICIALS to Plaintiff’s apartment.
7. The actions by DEFENDANTS directly resulted in serious and lasting physical and psychological injuries to the PLAINTIFF.
8. The action by DEFENDANTS also caused PLAINTIFF extreme pain and suffering and mental/emotional distress.
9. The abovementioned incident was a result of DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ARACE BADGE # 317, POLICE OFFICER BARKER BADGE # 28200, POLICE OFFICER ESTRELLA LOPEZ BADGE #25235, POLICE OFFICER AHN BADGE #1234, JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY

UNKNOWN)'s willful, intentional, negligent, reckless, and careless actions, as well as a failure to ensure safety to civilians, refrain from hiring, training, supervising, and retaining employees unfit to perform duties as a reasonable police officer would in the same situation, where the named defendant police officers and other named defendants all lacked the proper skill and training and background to perform their job in the proper and correct manner, rather than with improper propensities, improper police practices, abuse of process and other negligent acts and omissions described herein.

THE PARTIES

10. That at all times hereinafter mentioned, PLAINTIFF SHOSHANA GOVAN, was and still is a resident of the County of Bronx, City and State of New York.
11. That at all times hereinafter mentioned, DEFENDANT THE CITY OF NEW YORK, was and still is a public authority, duly organized and existing under and by virtue of the laws of the State of New York.
12. That at all times hereinafter mentioned, DEFENDANT NEW YORK CITY POLICE DEPARTMENT was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
13. Upon information and belief RELIANT REALTY was and is a domestic business corporation, organized and existing under and by virtue of the Laws of the State of New York.
14. Upon information and belief RELIANT REALTY owns, manages, operates, maintains, controls and is responsible for the building addressed: 1663 Eastburn Avenue, Bronx, NY 10457.

15. That at all times hereinafter mentioned, DEFENDANT SHARON STANTON was and still is a resident of the State of New York.
16. That at all times hereinafter mentioned, DEFENDANT SHARON STANTON was employed by RELIANT REALTY as property manager of the building address: 1663 Eastburn Avenue, Bronx, NY 10457.
17. That at all times hereinafter mentioned, DEFENDANT PEDRO “DOE”, was and still is a resident of the State of New York.
18. That at all times hereinafter mentioned, DEFENDANT PEDRO “DOE”, was and still is employed by RELIANT REALTY as a Superintendent of the building addressed: 1663 Eastburn Avenue, Bronx, NY 10457.
19. Upon information and belief, SHAMONE BROWN was and still is a resident of the State of New York.
20. That at all times hereinafter mentioned, DEEFENDANT POLICE OFFICER ARACE BADGE NUMBER 317, was and still is employed by the NEW YORK CITY POLICE DEPARTMENT and resides in the State of New York.
21. That at all times hereinafter mentioned, DEEFENDANT POLICE OFFICER AHN BADGE #1234, was and still is employed by the NEW YORK CITY POLICE DEPARTMENT and resides in the State of New York.
22. That at all times hereinafter mentioned, DEEFENDANT POLICE OFFICER BARKER BADGE # 28200 , was and still is employed by the NEW YORK CITY POLICE DEPARTMENT and resides in the State of New York.
23. That at all times hereinafter mentioned, DEEFENDANT POLICE OFFICER ESTRELLA LOPEZ BADGE #25235, was and still is employed by the NEW YORK CITY POLICE DEPARTMENT and resides in the State of New York.

24. Upon information and belief, that at all times hereinafter mentioned, DEFENDANT POLICE OFFICER OFFICIALS AND EMPLOYEES' JOHN DOES 1-10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN), was and still is a resident of the State of New York.

PLAINTIFF'S COMPLIANCE WITH THE GENERAL MUNICIPAL LAW

25. Plaintiff has satisfied and met all requirements and prerequisites for this case.

26. On March 2, 2023, within 90 days after the claim herein sued upon arose, PLAINTIFF by their undersigned counsel, personally filed with DEFENDANT CITY OF NEW YORK a Notice of Claim, in writing, sworn to by and on behalf of the PLAINTIFF in compliance with New York State General Municipal Law §50-e.

27. Plaintiff has duly filed and served a NOTICE OF CLAIM on DEFENDANTS within 90 days of incident with attachments of all relevant information regarding the claim herein sued upon.

28. More than 90 days have elapsed since the filing of the Notice of Claim.

29. That, DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ARACE BADGE # 317, JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) have failed to serve PLAINTIFFS with a notice setting forth a date certain for a physical examination within 90 days of the filing of the Notice of Claim in compliance with New York General Municipal Law §50-h (1) and (2), and therefore no such notice is effective for any purpose pursuant to New York General Municipal Law §50-h (2).

30. DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ARACE BADGE # 317, JOHN DOE POLICE

OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN), based on their failure to serve PLAINTIFFS with a notice for a physical examination within 90 days of the filing of the Notice of Claim, have waived their right to conduct such physical examination.

31. A 50-H hearing was held on May 2, 2023, in compliance with the General Municipal Law § 50-H.
32. That at least 30 days have elapsed since the service of the Notice of Claim, and that adjustment or payment thereof has been neglected or refused by the DEFENDANTS.
33. This action is commenced within one year and 90 days after the happening of the events upon which the claim is based.

COMMON ALLEGATIONS

34. DEFENDANT CITY OF NEW YORK owns, manages, operate, maintains controls and is responsible for the practices, policies, and customs of the DEFENDANT NEW YORK POLICE DEPARTMENT, and is responsible for the hiring, screening, training, supervising, controlling disciplining and retaining those persons employed by the NEW YORK POLICE DEPARTMENT, and any companies, corporations, organizations, or entities it contracts with.
35. DEFENDANT CITY OF NEW YORK and/or NEW YORK POLICE DEPARTMENT is responsible for the hiring, screening, training, supervising, controlling, disciplining, and retaining of those persons they employ, including DEFENDANT(s) POLICE OFFICER ARACE BADGE # 317 POLICE OFFICER BARKER BADGE # 28200, POLICE OFFICER ESTRELLA LOPEZ BADGE #25235, POLICE OFFICER AHN BADGE #1234 and JOHN

DOE POLICE OFFICER AND OFFICIALS 1 - 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN).

36. DEFENDANT RELIANT REALTY owns, manages, operates, maintains and controls the building addressed: 1663 Eastburn Avenue, Bronx, NY 10457.
37. DEFENDANT RELIANT REALTY owns, manages, operate, maintains controls and is responsible for the practices, policies, and customs of the Property Management, Security, Safety and Superintendent.
38. DEFENDANT RELIANT REALTY is responsible for the hiring, screening, training, supervising, controlling, disciplining, and retaining of those persons they employ, including property manager Sharon Stanton and building super Pedro Doe.
39. DEFENDANT SHARON STANTON is the property manager of the building who is responsible for the day to day management of the property, supervising the Superintendent and ensuring the safety and habitability for residents.
40. DEFENDANT PEDRO "DOE" is the Superintendent of the building where Plaintiff resides and is responsible for the general upkeep of the building, tending to tenant complaints as well as ensuring the safety and habitability for residents.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
ASSAULT AND BATTERY

41. PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs "1" through "40" of the Complaint herein with the same force and effect as though the same were recited here in full.
42. That, on or about the 8th day of December 2022 at approximately 9:30 A.M., while

PLAINTIFF SHOSHANA GOVAN was asleep, DEFENDANT PEDRO “DOE” allowed DEFENDANTS THE NEW YORK CITY POLICE DEPARTMENT POLICE OFFICER ARACE, JOHN DOE POLICE OFFICERS AND OFFICIALS, and SHAMONE BROWN entry into the building without inquiry for warrant or probable cause, DEFENDANTS drilled holes through PLAINTIFF’s front door lock and then kicked in the door to enter the apartment. DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant police officers, and/or other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) accompanied DEFENDANT SHAMONE BROWN, Plaintiff’s ex-boyfriend, into the apartment. PLAINTIFF had an order of protection against her SHAMONE BROWN and three separate police reports filed against him for domestic violence (filed on Nov 4, 2022, Nov 8, 2022, Dec 2, 2022). PLAINTIFF previously furnished RELIANT REALTY and SHARON STANTON with copies of the Order of Protection against SHAMONE BROWN and Police reports of domestic violence, putting them on formal written notice. She provided actual and constructive notice verbally and in writing to the named defendants. At the time of entry, PLAINTIFF was undressed and in bed. PLAINTIFF informed DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant police officers, and other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) of her Order of protection against SHAMONE BROWN. PLAINTIFF requested the DEFENDANTS to leave for her to get dressed, which they refused. PLAINTIFF requested to have a female arresting officer, which was also denied. PLAINTIFF refused to get dressed in front of the DEFENDANTS, she was then touched about her person and placed in handcuffs on her bed without being dressed. DEFENDANTS kept PLAINTIFF improperly clothed and restrained

by handcuffs until their POLICE SUPERINTENDENT arrived and instructed DEFENDANTS to remove the handcuffs and allow PLAINTIFF to get dressed. DEFENDANTS, with knowledge of PLAINTIFF's order of protection against her ex-boyfriend DEFENDANT SHAMONE BROWN assisted SHAMONE BROWN to remove property from the premises, presumed to belong to him. DEFENDANTS left the apartment in disarray. PLAINTIFF was given a Criminal Court Desk appearance ticket for Unlawful Eviction. PLAINTIFF was directed to appear in court on December 27, 2022. PLAINTIFF appeared in court and the matter was dismissed and sealed by the District Attorney's office in her favor.

43. That, the assault, and battery upon PLAINTIFF GOVAN by DEFENDANT(s) POLICE OFFICER ARACE BADGE NUMBER 317, and/or the other named defendant police officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS 1 – 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) was preceded by an unlawful breaking and entering of PLAINTIFFS occupied apartment.
44. That, the assault, and battery upon PLAINTIFF GOVAN by DEFENDANT(s) POLICE OFFICER ARACE BADGE NUMBER 317, and/or the other named defendant police officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS 1 – 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN), who unlawfully physically touched, seized and detained PLAINTIFF GOVAN while she was undressed. Defendants without justification, legal cause, probable cause, permission or consent, touched her about her body and further placed handcuffs on plaintiff;
45. That PLAINTIFF GOVAN did not consent to or give permission to the DEFENDANTS to touch or grab her in any way or manner. DEFENDANT(s) POLICE OFFICER ARACE

BADGE NUMBER 317, and/or the other named defendant police officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS 1 – 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) had no permission to do so, did it without authority to do so, did it in the course of their employment as NY Police Officers, under color of law, and in the scope of their employment and duty.

46. That all action were contrary to existing NYS Laws and Regulations, case law, and Police department patrol guide regulations and directives.

47. That the unlawful actions of the DEFENDANT(s) SHAMONE BROWN, LANDLORD (INSERT NAME), POLICE OFFICER ARACE BADGE NUMBER 317, and/or the other named defendant police officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS 1 – 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) includes but not limited to, forceful breaking and entering the claimants' home without a warrant and causing excessive personal property damage thereto, unlawfully and without consent or authority physically touched, seized, searched, and detained the claimant, without the claimant's consent or permission, and without legal authority or probable cause to do so.

48. That DEFENDANT(s) POLICE OFFICER ARACE BADGE NUMBER 317, and/or the other named defendant police officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS 1 – 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) caused physical harm, injury and damages including but not limited to; PLAINTIFF GOVAN being grabbed by male Police officers and handcuffed while undressed, and without cause or reason or probable cause, or his consent or permission, forcibly seized, searched, touched by said male police officers about her body.

49. Plaintiff was improperly touched by the named defendants, injured, all without her consent,

permission or authority to do so, or any legal basis to do so.

50. That by reason of all of the foregoing, PLAINTIFF GOVAN injuries include but not limited to, injury to the wrist and back, loss of normal daily activities, Separation from family, loved ones, friends and pets, loss of employment opportunities, loss of services and consortium, trespass upon PLAINTIFF GOVAN's person, trespass upon PLAINTIFF GOVAN's personal property, destruction of PLAINTIFF GOVAN's personal property, mental anguish as well as other psychological injuries, including but not limited to, shame, humiliation, indignity, and emotional distress, damages to reputation, character and credit, damage to personal property and severe emotional distress.
51. That, such injuries to PLAINTIFF GOVAN mentioned above till exist and are permanent injuries.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF FOR § 1983 VIOLATION

52. That, PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs "1" through "52" of the Complaint herein with the same force and effect as though the same were recited here in full.
53. That, on or about the 8th day of December 2022 at approximately 9:30 A.M., while PLAINTIFF SHOSHANA GOVAN was asleep, DEFENDANT PEDRO "DOE" allowed DEFENDANTS THE NEW YORK CITY POLICE DEPARTMENT POLICE OFFICER ARACE, JOHN DOE POLICE OFFICERS AND OFFICIALS, and SHAMONE BROWN entry into the building without inquiry for warrant or probable cause, DEFENDANTS drilled holes through PLAINTIFF's front door lock and then kicked in the door to enter the apartment. DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant

police officers, and/or other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) accompanied DEFENDANT SHAMONE BROWN, Plaintiff's ex-boyfriend, into the apartment. PLAINTIFF had an order of protection against her SHAMONE BROWN and three separate police reports filed against him for domestic violence (filed on Nov 4, 2022, Nov 8, 2022, Dec 2, 2022). PLAINTIFF previously furnished RELIANT REALTY and SHARON STANTON with copies of the Order of Protection against SHAMONE BROWN and Police reports of domestic violence, putting them on formal written notice. She provided actual and constructive notice verbally and in writing to the named defendants. At the time of entry, PLAINTIFF was undressed and in bed. PLAINTIFF informed DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant police officers, and other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) of her Order of protection against SHAMONE BROWN. PLAINTIFF requested the DEFENDANTS to leave for her to get dressed, which they refused. PLAINTIFF requested to have a female arresting officer, which was also denied. PLAINTIFF refused to get dressed in front of the DEFENDANTS, she was then touched about her person and placed in handcuffs on her bed without being dressed. DEFENDANTS kept PLAINTIFF improperly clothed and restrained by handcuffs until their POLICE SUPERINTENDENT arrived and instructed DEFENDANTS to remove the handcuffs and allow PLAINTIFF to get dressed. DEFENDANTS, with knowledge of PLAINTIFF's order of protection against her ex-boyfriend DEFENDANT SHAMONE BROWN assisted SHAMONE BROWN to remove property from the premises, presumed to belong to him. DEFENDANTS left the apartment in disarray. PLAINTIFF was given a Criminal Court Desk appearance ticket for Unlawful

Eviction. PLAINTIFF was directed to appear in court on December 27, 2022. PLAINTIFF appeared in court and the matter was dismissed and sealed by the District Attorney's office in her favor.

54. That the violation of Civil Rights under 42 U.S.C. § 1983 by DEFENDANTS deprived PLAINTIFF of her rights privileges and immunities secured by the Constitution and Law of the United States of America by one or more individuals who, under color of a statute or regulation of a State, caused PLAINTIFF to be so deprived, and other and further violations of PLAINTIFF's rights under the Constitutions of the United States and the State of New York.
55. That the unlawful actions of DEFENDANTS include but not limited to the illegal search and seizure of PLAINTIFF GOVAN's person and the illegal search and seizure of PLAINTIFFS apartment.
56. That PLAINTIFFS did not consent to or give permission to DEFENDANTS to enter or search their home.
57. That DEFENDANTS actions lacked justification, excuse or consent and did so act without a warrant or probable cause.
58. That, PLAINTIFF was improperly and unlawfully detained and held without her consent or permission, unlawfully seized and/or searched without valid warrant or any probable cause. PLAINTIFF did not consent to or give permission to held unlawfully while DEFENDANTS unlawfully and without consent searched PLAINTIFF's home.
59. DEFENDANTS failed to investigate the matter or claims, review the valid Order of Protection in plaintiff's possession, determine if the SHAMONE BROWN was not allowed in the premises or close to plaintiff, inquire or review the previously filed police reports, and

perform the basic pre-arrest investigatory inquiries a police officer of similar training and experience would under the same circumstances.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
NEGLIGENCE**

60. That, PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs “1” through “60” of the Complaint herein with the same force and effect as though the same were recited here in full.
61. That, on or about the 8th day of December 2022 at approximately 9:30 A.M., while PLAINTIFF SHOSHANA GOVAN was asleep, DEFENDANT PEDRO “DOE” allowed DEFENDANTS THE NEW YORK CITY POLICE DEPARTMENT POLICE OFFICER ARACE, JOHN DOE POLICE OFFICERS AND OFFICIALS, and SHAMONE BROWN entry into the building without inquiry for warrant or probable cause, DEFENDANTS drilled holes through PLAINTIFF’s front door lock and then kicked in the door to enter the apartment. DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant police officers, and/or other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) accompanied DEFENDANT SHAMONE BROWN, Plaintiff’s ex-boyfriend, into the apartment. PLAINTIFF had an order of protection against her SHAMONE BROWN and three separate police reports filed against him for domestic violence (filed on Nov 4, 2022, Nov 8, 2022, Dec 2, 2022). PLAINTIFF previously furnished RELIANT REALTY and SHARON STANTON with copies of the Order of Protection against SHAMONE BROWN and Police reports of domestic violence, putting them on formal written notice. She provided actual and constructive notice verbally

and in writing to the named defendants. At the time of entry, PLAINTIFF was undressed and in bed. PLAINTIFF informed DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant police officers, and other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) of her Order of protection against SHAMONE BROWN. PLAINTIFF requested the DEFENDANTS to leave for her to get dressed, which they refused. PLAINTIFF requested to have a female arresting officer, which was also denied. PLAINTIFF refused to get dressed in front of the DEFENDANTS, she was then touched about her person and placed in handcuffs on her bed without being dressed. DEFENDANTS kept PLAINTIFF improperly clothed and restrained by handcuffs until their POLICE SUPERINTENDENT arrived and instructed DEFENDANTS to remove the handcuffs and allow PLAINTIFF to get dressed. DEFENDANTS, with knowledge of PLAINTIFF's order of protection against her ex-boyfriend DEFENDANT SHAMONE BROWN assisted SHAMONE BROWN to remove property from the premises, presumed to belong to him. DEFENDANTS left the apartment in disarray. PLAINTIFF was given a Criminal Court Desk appearance ticket for Unlawful Eviction. PLAINTIFF was directed to appear in court on December 27, 2022. PLAINTIFF appeared in court and the matter was dismissed and sealed by the District Attorney's office in her favor.

62. That on December 8, 2023, DEFENDANTS were negligent in their handling of this entire situation. The defendants all failed to perform as reasonable professional in their respective fields of practice including, police officers and/or real estate professionals, and/or a property manager, and/or a building superintendent. They all failed to perform as a reasonably trained, and properly supervised similar or like professional, under the same circumstances would

have performed. They were clearly negligent in performing their responsibilities, duties, and assignments.

63. They owed a duty to PLAINTIFF GOVAN, including but not limited to the following, to protect her, to enforce the laws, to enforce her order of protection, to preserve peace, to mitigate risk, promote public safety, to reduce fear and abide by the rules and regulations established, especially those established by the Constitution, to perform a proper investigation, review documents presented, speak to all witnesses with knowledge of the facts and circumstances.
64. DEFENDANTS breached those duties owed to PLAINTIFF by, including but not limited to, negligently, carelessly, and/or recklessly failing to protect PLAINTIFF, preserve the peace, promote public safety, perform their duties, investigate the incident, review documents, speak to witnesses, use proper and reasonable force, make proper and authorized arrests, conduct proper search and seizures, make lawful detentions and arrests, properly search a female suspect using a female officer, enforce an authorized order of protection, and abide by the rules and regulations established, especially those established by the Constitution.
65. That the named DEFENDANTS, particularly POLICE OFFICER ARACE BADGE NUMBER 317, and the other named defendants, and JOHN DOE POLICE OFFICERS AND OFFICIALS 1 – 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) on December 8, 2023, throughout the course of the incident were acting in the performance of their employment and within the scope of their authority.
66. That the DEFENDANTS, particularly RELIANT REALTY, SHARON STANTON and PEDRO “DOE” on December 8, 2023, throughout the course of the incident were acting in the

performance of their employment as landlord, property manager and superintendent and within the scope of their authority.

67. That the names DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named defendants, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown) breached their duty to PLAINTIFF GOVAN as Police officers, by negligently, carelessly, and/or recklessly, touching and/or assaulting PLAINTIFF GOVAN's person without justification or consent, detaining PLAINTIFF GOVAN without probable cause, allowing entry of DEFENDANT SHAMONE BROWN in violation of PLAINTIFF's order of protection, illegal entry into PLAINTIFF's home by drilling through lock and illegal search of PLAINTIFF's home.

68. That at all times hereinafter mentioned, DEFENDANTS CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT were negligent in the hiring, training, supervising, and retaining of a person or persons who was/were unfit to serve as police, custodial, correctional, court, legal, and/or clerical officers and who it knew or should have known had negligent, reckless, careless, or dangerous propensities and a lack of proper temperament, reliability, responsibility, carefulness and prudence; in that DEFENDANT CITY OF NEW YORK, its agents, servants and employees failed to exercise reasonable precautions in employing and retaining said officers by failing to properly investigate their background and employment records and/or having knowledge of said records, thereafter hiring and/or retaining said officers.

69. That at all times hereinafter mentioned, DEFENDANTS CITY OF NEW YORK and THE

NEW YORK POLICE DEPARTMENT were negligent in their duty to hire, screen, train, supervise, and instruct its police officers by not exercising care in instructing them as to their deportment, duties, behavior, and conduct as police officers and representatives of the City of New York and in the training and instruction, among other things, on the proper use of force, proper search and seizure protocols, making valid arrests, reviewing court orders, reviewing police forms and reports, conduct proper investigation, and proper female arrest protocols.

70. That at all times hereinafter mentioned, DEFENDANTS CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT were negligent in the establishment of procedures, rules, and/or regulations for said police officers, in that the lack of such procedures, rules and/or regulations designed to protect those individuals in the custody of the City of New York, or the inadequate drafting and/or enforcement of such procedures, rules and/or regulations were a factual and proximate cause of the injuries to claimant since the claimant was damaged due to a lack of proper measures which was clearly a function of inadequate or non-existent procedures, rules and/or regulations.

71. That at all times hereinafter mentioned, DEFENDANTS CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT were negligent in the performance of police officer's duties as a reasonably prudent and careful police officer would have used under similar circumstances, including, but not limited to, improper and negligent use of or carrying out of duty by certain police officer(s), which a police officer of ordinary procedure would have done all without any negligence on the part of the claimant contributing thereto.

72. That DEFENDANTS RELIANT REALTY was negligent in their duty to hire, train, supervise and retain DEFENDANT SHARON STANTON as a Property Manager, negligence includes but not limited to SHARON STANTON's lack of proper reliability,

responsibility, carefulness and prudence to be a reasonable property manager. Defendant RELIANT REALTY was negligent by not exercising the reasonable care in instructing Defendant SHARON STANTON of her duties, behaviors and conduct as a property manager.

73. That DEFENDANTS RELIANT REALTY was negligent in their duty to hire, train, supervise and retain DEFENDANT PEDRO “DOE” as a Superintendent, negligence includes but not limited to PEDRO “DOE”’s lack of proper reliability, responsibility, carefulness and prudence to be a reasonable property manager. Defendant RELIANT REALTY was negligent by not exercising the reasonable care in instructing Defendant PEDRO “DOE” of his duties, behaviors and conduct as a Superintendent.

74. That DEFENDANTS RELIANT REALTY, SHARON STANTON and PEDRO “DOE” breached their duties of securing the property from illegal entry when they failed to inquire for a warrant before allowing the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown) to enter the premises without probable cause.

75. That DEFENDANTS RELIANT REALTY, SHARON STANTON and PEDRO “DOE” were negligent in their duties of securing the property from illegal entry when they failed to inquire for a warrant before allowing the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge

numbers presently unknown) to enter the premises without probable cause.

76. That DEFENDANTS RELIANT REALTY, SHARON STANTON and PEDRO “DOE” were aware of the Order of Protection against SHAMONE BROWN and did not attempt to stop DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown) from allowing SHAMONE BROWN into the apartment, from which he was forbade.

77. That DEFENDANTS RELIANT REALTY, SHARON STANTON and PEDRO “DOE” were aware that PLAINTIFF was the only resident on the lease for the apartment and did not inform the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317 and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown)

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
INFLCITION FO MENTAL DISTRESS

78. That, PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs “1” through “78” of the Complaint herein with the same force and effect as though the same were recited here in full.

79. That, on or about the 8th day of December 2022 at approximately 9:30 A.M., while PLAINTIFF SHOSHANA GOVAN was asleep, DEFENDANT PEDRO “DOE” allowed DEFENDANTS THE NEW YORK CITY POLICE DEPARTMENT POLICE OFFICER

ARACE, JOHN DOE POLICE OFFICERS AND OFFICIALS, and SHAMONE BROWN entry into the building without inquiry for warrant or probable cause, DEFENDANTS drilled holes through PLAINTIFF's front door lock and then kicked in the door to enter the apartment. DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant police officers, and/or other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) accompanied DEFENDANT SHAMONE BROWN, Plaintiff's ex-boyfriend, into the apartment. PLAINTIFF had an order of protection against her SHAMONE BROWN and three separate police reports filed against him for domestic violence (filed on Nov 4, 2022, Nov 8, 2022, Dec 2, 2022). PLAINTIFF previously furnished RELIANT REALTY and SHARON STANTON with copies of the Order of Protection against SHAMONE BROWN and Police reports of domestic violence, putting them on formal written notice. She provided actual and constructive notice verbally and in writing to the named defendants. At the time of entry, PLAINTIFF was undressed and in bed. PLAINTIFF informed DEFENDANT POLICE OFFICER ARACE, and/or the other named defendant police officers, and other JOHN DOE POLICE OFFICERS AND OFFICIALS (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) of her Order of protection against SHAMONE BROWN. PLAINTIFF requested the DEFENDANTS to leave for her to get dressed, which they refused. PLAINTIFF requested to have a female arresting officer, which was also denied. PLAINTIFF refused to get dressed in front of the DEFENDANTS, she was then touched about her person and placed in handcuffs on her bed without being dressed. DEFENDANTS kept PLAINTIFF improperly clothed and restrained by handcuffs until their POLICE SUPERINTENDENT arrived and instructed DEFENDANTS to remove the handcuffs and allow PLAINTIFF to get dressed.

DEFENDANTS, with knowledge of PLAINTIFF's order of protection against her ex-boyfriend DEFENDANT SHAMONE BROWN assisted SHAMONE BROWN to remove property from the premises, presumed to belong to him. DEFENDANTS left the apartment in disarray. PLAINTIFF was given a Criminal Court Desk appearance ticket for Unlawful Eviction. PLAINTIFF was directed to appear in court on December 27, 2022. PLAINTIFF appeared in court and the matter was dismissed and sealed by the District Attorney's office in her favor.

80. That at all times hereinafter mentioned, DEFENDANTS intentionally and/or negligently inflicted emotional and mental distress upon PLAINTIFF when DEFENDANTS POLICE OFFICER ARACE BADGE NUMBER 317, and the other named officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS 1 – 10 (NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN) touched, seized, detained, and/or assaulted PLAINTIFF GOVAN's person without justification or consent, detained PLAINTIFF GOVAN without probable cause, violated PLAINTIFF GOVAN's order of protection against SHAMONE BROWN and conducted illegal search of PLAINTIFF's apartment.

81. That DEFENDANTS THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown), all acting in the performance of their employment and within the scope of their authority who by extreme and outrageous conduct and/or performance of duties, responsibilities, and/or assignments intentionally, recklessly, carelessly, negligently, and/or maliciously caused emotional distress to the claimant.

82. That the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown) intentionally, recklessly, carelessly, negligently, and/or maliciously caused emotional distress to the claimant by not observing the Order of Protection against SHAMONE BROWN and escorting him into her home causing her fear and anxiety.
83. That the DEFENDANTS RELIANT REALTY, SHARON STANTON AND PEDRO “DOE” intentionally, recklessly, carelessly, negligently, and/or maliciously caused emotional distress to the claimant by allowing the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown), to break into and escort DEFENDANT SHAMONE BROWN into the apartment where Plaintiff, was the sole occupant on the lease and with knowledge of the Order of Protection against SHAMONE BROWN and the history of domestic violence.
84. That by reason of all the foregoing, negligence, recklessness, and carelessness of the DEFENDANTS, the assault and battery by the DEFENDANTS and the infliction of emotional and mental distress by the DEFENDANTS, PLAINTIFF GOVAN’s injuries include but not limited to, injury to the wrist and back, loss of normal daily activities, Separation from family, loved ones, friends and pets, loss of employment opportunities, loss of services and consortium, trespass upon PLAINTIFF GOVAN’s person, trespass upon PLAINTIFF

GOVAN's personal property, destruction of PLAINTIFF GOVAN's personal property, mental anguish as well as other psychological injuries, including but not limited to, shame, humiliation, indignity, and emotional distress, damages to reputation, character and credit, damage to personal property and severe emotional distress. Damage to personal property and severe emotional distress and is thereby damaged in a sum of money exceeding the jurisdiction of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
FALSE ARREST**

85. That, PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs "1" through "85" of the Complaint herein with the same force and effect as though the same were recited here in full.
86. That the Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, JOHN DOE POLICE OFFICERS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ARACE BADGE # 317, and the other named officers, and JOHN DOE POLICE OFFICERS AND OFFICIALS through their agents, servants, and/or employees was aware that probable cause did not exist for the arrest and detention of the plaintiff and that said arrest and detention were unlawful and without justification or excuse.
87. Upon information and belief, in all the wrongful acts above alleged, DEFENDANTS, through their agents, servants, and/or employees acted without reasonable or probable cause and with malicious intent to arrest, oppress and violate the rights of Plaintiff and said actions were committed in bad faith.
88. That by reason of the foregoing, plaintiff was falsely arrested and illegally deprived of his

liberty and civil rights, was caused to and did incur legal expenses and is thereby damaged in sum of money exceeding the jurisdiction of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
FALSE IMPRISONMENT**

89. That, PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs “1” through “89” of the Complaint herein.
90. That Plaintiff was falsely imprisoned by DEFENDANTS, through their agents, servants and/or employees, including but not limited to POLICE OFFICER ARACE BADGE # 317, and the other named officers, and JOHN DOE(s) (whose names and badge numbers presently unknown), who procured and/or effected said false imprisonment, knowing their actions to be wrongful and malicious and without any basis, which false imprisonment commenced at or about 9:30 a.m. on the 8th day of December 2022, where Plaintiff was detained and held against her will.
91. That the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown), intended to confine the PLAINTIFF and PLAINTIFF was conscious of the confinement and PLAINTIFF did not consent to confinement.
92. That the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown), with

knowledge of Defendant SHAMONE BROWN's history of domestic violence against Plaintiff and the Order of Protection against him, did not further investigate or honor the Order of protection.

93. That the DEFENDANTS' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning the plaintiff and damaging the Plaintiff in her reputation and depriving her of her liberty.
94. That by reason of the foregoing, PLAINTIFF was falsely imprisoned and illegally deprived of her liberty and civil rights, was caused to and did incur legal expenses and is thereby damaged in a sum of money exceeding the jurisdiction of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
ABUSE OF PROCESS**

95. That, PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs "1" through "95" of the Complaint herein.
96. That the actions of the Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown), in causing Plaintiff to be arrested, falsely imprisoned and prosecuted, were effected for ulterior purposes of causing plaintiff to be arrested, falsely imprisoned, and prosecuted, were affected for the ulterior purposes for causing plaintiff to be unlawfully deprived of her liberty and civil rights, to suffer inconvenience, humiliation, shame, embarrassment, damage to her reputation and good name and to incur legal expenses.

97. That Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through their agents, servants, and/or employees, including but not limited to POLICE OFFICER ARACE BADGE #317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (names and badge numbers presently unknown), falsely arrested, imprisoned and prosecuted Plaintiff after being given notice of charges filed against SHAMONE BROWN and Plaintiff's order of protection against him for domestic violence.
98. That Defendants, despite knowledge of Plaintiff's order of protection against SHAMONE BROWN and his past violent acts against Plaintiff, unlawfully entered Plaintiff's private residence, improperly searched and seized Plaintiff while she was improperly clothed and improperly charged Plaintiff for unlawful eviction.
99. That the false imprisonment and prosecution of Plaintiff by the Defendants was wrongful, malicious, willful and without justification or excuse and an abuse of judicial process.
100. That by the reason of the foregoing, the Plaintiff was under color of process, unlawfully deprived of her liberty and civil rights, caused to suffer inconvenience, humiliation, shame and embarrassment, damage to his reputation and good name and incurred legal expenses all in sum of money exceeding the jurisdiction of all lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

FOR MALICIOUS PROSECUTION

101. PLAINTIFF SHOSHANA GOVAN, repeats and re-alleges each and every allegation contained in paragraphs "1" through "100" of the Complaint herein.
102. That the Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants, employees and or police officers, including but not limited to POLICE OFFICER ARACE BADGE # 317, and the other named officers, and

JOHN DOE POLICE OFFICERS and OFFICIALS (whose names and badge numbers are presently unknown), were all acting in the performance of their employment and within the scope of their authority against the plaintiff, by bringing the Plaintiff before the New York Midtown Community Court for unlawful eviction.

103. That the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants, employees and or police officers, including but not limited to POLICE OFFICER ARACE BADGE # 317, and the other named officers, and JOHN DOE POLICE OFFICERS and OFFICIALS (whose names and badge numbers are presently unknown), after being made aware of the domestic violence conducted by Defendant SHAMONE BROWN and Plaintiff's order of protection against him, proceeded to arrest and charge Plaintiff.

104. The Plaintiff appeared in court on December 27, 2022, and had the matter dismissed and sealed in her favor. The plaintiff had to appear because the Defendants filed and pursued criminal charges against her.

105. That all charges were dismissed in her favor by the court.

106. Plaintiff also had expenses for the defense of these false charges including but not limited to hiring defense counsel and incurring legal fees, and other related litigation costs.

107. That the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, employees and/or Police Officers/Officials had no probable cause for the criminal proceeding, and the arrest, detention and criminal proceedings initiated, performed, continued, and executed against the Plaintiff was done with malice.

108. That by reason of the foregoing, the Plaintiff herein, was caused to be falsely arrested and illegally deprived of her liberty and civil rights; was caused to suffer imprisonment and

confinement, was caused to suffer conscious pain and suffering; was caused to suffer great shock to her nervous system; was maliciously prosecuted; was assaulted and battered and is thereby damaged in a sum of money exceeding the jurisdiction of all lower courts.

WHEREFORE, PLAINTIFF demands judgement against the DEFENDANTS in the cause of action for a sum of FIVE MILLION (\$5,000,000) together with interest and the costs and disbursements of this action.

Date: New York, NY
February 28 ,2024

Adam Thompson

ADAM M. THOMPSON, P.C.
Attorney for Plaintiff
48 Wall Street, Suite 1100
New York, NY 10005

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
SHOSHANA GOVAN,

INDEX NO.

Plaintiff,

**ATTORNEY
AFFIRMATION**

**THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ARACE BADGE # 317,
RELIANT REALTY, PEDRO "DOE" (LAST NAME
PRESENTLY UNKNOWN- SUPERINTENDENT),
SHARON STANTON (PROPERTY MANAGER)
SHAMONE BROWN (EX-BOYFRIEND), AND
JOHN DOE POLICE OFFICERS AND OFFICIALS
(NAMES AND BADGE NUMBERS PRESENTLY UNKNOWN)**

Defendants,

-----X
STATE OF NEW YORK)
)ss:
COUNTY OF NEW YORK)

I, ADAM M. THOMPSON, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for the Plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by the Plaintiff is because the Plaintiff does not presently reside within the county where deponent maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: Papers and records in the deponent's file and conversations with the Plaintiff. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York

February 28 ,2024

Adam M. Thompson

ADAM M. THOMPSON, P.C., Partner
Attorney for Plaintiff,
48 Wall Street, 11th Floor
New York, New York 10005
(212) 267-2424